



Presiding Officer Memorandum

To The Board of Directors
From Alley Till for Branding & Outreach
Subject Conforming the Chair's office to RCW 24.03A.585 at the next board meeting

THE QUESTION

Washington's officer statute states that the officers of a nonprofit corporation "consist of a president, secretary, and treasurer, and other officers as may be authorized by the articles, the bylaws, or the board" (RCW 24.03A.585(1), verified against the published text). The statute names the office of president; no subsection permits a different title to substitute for it.

The corporation's record answers with a resolution: the Chair serves as presiding officer and performs the president's statutory functions, with the office of President remaining vacant until the board chooses to fill it. That answer covers the duties. It leaves one soft spot: on a literal reading, the statute expects the office itself to be held, and the corporation's record says the office is vacant.

WHY IT SHOULD BE SETTLED

Two upcoming moments put the question in front of outside readers. A bank opening the corporation's account will ask who its president is, and the exemption application to the IRS lists the corporation's officers. In both cases, "the office is vacant, but its functions are performed" invites a follow-up question; "the Chair is the president, serving under the title Chair of the Board" ends the inquiry. The fix costs one resolution and changes no name, no title, and no person's duties.

THE FIX

Adopt the resolution set out on the following page at the next board meeting. It declares that the office of president is held by the Chair, under the Chair's existing title. The statutory office is filled; the corporation's titles stay exactly as they are; and the prohibition on one person holding both president and secretary (RCW 24.03A.585(3)) remains satisfied, since the Secretary does not serve as Chair.



HOW TO DO IT

1. Place the item on the notice for the next board meeting. It is ordinary business, not a Major Action under the bylaws, and passes by majority vote at a meeting with quorum.
2. Adopt the resolution; the Secretary records it in the minutes and conforms the corporate records.
3. Confirm the wording at the attorney-review pass already scheduled on the adoption checklist, before the exemption application is filed.

EXHIBIT · RESOLUTION FOR ADOPTION

RESOLVED, that the Chair of the Board is and serves as the president of the corporation within the meaning of RCW 24.03A.585, holding that office under the title Chair of the Board; that the office of president is thereby filled for all purposes of the Washington Nonprofit Corporation Act; and that the corporation's prior resolution on the presiding officer is restated to conform to this resolution, with all actions taken under it ratified and confirmed.

RECOMMENDATION

Adopt at the next meeting, before any bank account is opened or the exemption application is filed. Until then, the existing resolution continues to govern and the corporation's duties remain fully performed.